OPTUCORP CUSTOMER AGREEMENT

Number: 83428

[dias_crucero] Days Optucorp Cruise Travel

OPTUCORP IS REGISTERED WITH THE STATE OF FLORIDA AS A SELLER OF TRAVEL, REGISTRATION NO. ST39383

THIS AGREEMENT (hereinafter, "Agreement"), is entered into by Optucorp USA LLC, a limited liability company duly organized, validly existing, and in good standing under the laws of the State of Florida, which maintains its principal place of business at 13300 S.W. 128th Street, Miami, Florida 33186 (hereinafter, "**Optucorp**"), and:

Name: xx xsxs

Address: xsxsxs xsxs

City: xsxsxssxsxs *State:* xsxsxs *Zip:* sxsxx

Company: BenefitHub

E-Mail: _pruebas30@optucorp.com

Cell Phone:

Work Phone:

(Hereinafter, the "**Customer**"). In consideration of the full payment by the Customer of the Price, and other good and valuable consideration, the sufficiency, adequacy and receipt of which is hereby acknowledged and agreed to, the Optucorp and Customer agree as follows:

1. Optucorp Vacation Certificate. Subject to the terms of this Agreement, Optucorp hereby sells to the Customer one (1) Optucorp Vacation Certificate that will entitle Two (2) adults to travel in a Participating Carnival Cruise for Three ([dias_crucero]) DAYS (throughout this Agreement, the "Optucorp Cruise Travel"). Under no circumstances is any agent or representative of Optucorp permitted to offer or promise the Customer any additional or other services not specified in this Agreement.
2. Optucorp Terms & Conditions and Carnival Terms & Conditions. The Customer acknowledges and agrees that the use of the Optucorp Vacation Certificate and the details of the Optucorp Cruise Travel are subject to the Optucorp Terms & Conditions and Carnival Terms & Conditions (throughout this Agreement, the "Optucorp Terms & Conditions and Carnival Terms & Conditions").
3.

Price. The Customer hereby purchases the Optucorp Vacation Certificate for the stated price of 768 USD, (throughout this Agreement, the "Price"). Price based on DOUBLE occupancy, if the Customer wishes to travel in SINGLE occupancy, the cabin payment will be based on double occupancy.

4. Payment.

A. Credit Card Payment Plan. The Customer agrees to pay the full amount of the Price to Optucorp within One (1) Year of the Effective Date as follows:

Twenty-four (24) equal twice monthly installment payments of **32 USD** to be charged to the Customer's designated Card.

Customers acknowledge and agree that they may only use the Optucorp Vacation Certificate once they have paid HUNDRED (100%) PER CENT of the Price. The Customer may accelerate the payment of the remaining balance of the Price of the Optucorp Vacation Certificate at any time.

B. Conditions of Payment:

i. The Price of the selected Optucorp Vacation Certificate constitutes the Customer's total financial obligation for the purchase of an Optucorp Vacation Certificate.

ii. The Customer agrees that the first installment of the Price shall be charged to the designated Card on 2017-07-01 (throughout this Agreement, the "Effective Date").

iii. In the event the Customer fails to timely pay any installment of the Price within Ten (10) Days of the date the payment is due, the Customer acknowledges and agrees that he/she shall be charged a late payment fee by Optucorp in the amount of TEN (10%) PERCENT of the scheduled installment payment.

iv. The Customer acknowledges and agrees that he/she shall not be able to use the Optucorp Vacation Certificate until he/she has paid the full amount of the Price.

v. In the event the Customer's designated Card declines payment of an agreed installment of the Price, the Customer further agrees to pay the remaining balance of the Price within Sixty (60) Days by means other than the designated Credit Card.

vi. Under no circumstances is any consultant or representative of Optucorp authorized to accept cash payments.

vii. Carnival may collect any fuel supplement in effect at the time of sailing, even if the Cruise price has been paid in full. The Customer acknowledges and agrees that he/she may be charged for upgrades from the amenities offered in a standard cabin requested by the Customer at the time of check-in or during his/her stay as charged by the Participating Cruise, including additional beds, pillows, room service and the like. The Customer is also free to request cabin upgrades before the travel date directly to Optucorp and Optucorp will charge the Customer an additional fee established by the Participant Cruise depending on the upgrade requested. Optucorp is not responsible for any request or payment made directly to the Cruise. Optucorp does not offer any recreational services and thus no recreational charges will be applied.

5. Optucorp Vacation Certificate Benefits.

A. Subject to the Optucorp Terms and Conditions and Carnival Terms and Conditions, an Optucorp Vacation Certificate entitles the Customer to the following services and benefits:

i. A stay for the applicable number of days in a standard interior cabin at a Participating Cruise for Two adults; (DOUBLE Occupancy)

ii. Subject to the internal rules and policies of the specific Participating Cruise, the Customer can request a maximum of two additional passengers in the same cabin. The price for each additional passenger will be the same regardless of age.

iii. Subject to the internal rules and policies of the specific Participating Cruise, the Customer may be entitled to all meals and drinks (alcoholic drinks or soft drinks are not included) for two adults;

iv. Tips, gratuities and taxes are included with the price.

B. The Optucorp Vacation Certificate does not include or cover any expenses of travel associated with an Optucorp Cruise Travel, including but not limited to:

i. Travel Expenses;

ii. Destination Expenses;

iii. Ground Transportation Expenses;

iv. Meal's Expenses outside the Cruise; other than meals furnished without charge by Participating Cruise;

v. Alcoholic drinks and Soft drinks;

vi. Tips for Porters

vii. Any and all other incidental or other expenses arising from or related to the Optucorp Cruise Travel.

The Customer acknowledges and agrees that he/she is solely and exclusively responsible to reserve, purchase, pay and fulfill all of the above expenses for himself/herself, his/her spouse, companion, or significant other, and his/her family.

6. Expiration Date. Unless the Customer is granted an extension of time by Optucorp pursuant to Section 7(p) of this Agreement:

A. The Customer acknowledges and agrees that the Optucorp Vacation Certificate is solely valid for Twelve (12) Months from the Effective Date;

B. The Customer further acknowledges and agrees, that unless the Customer uses or redeems the Optucorp Vacation Certificate, and fully completes his/her travel within Twelve (12) Months of the Effective Date, the Optucorp Vacation Certificate shall expire, and thereafter become null and void; and,

C. In such event, the Customer further acknowledges and agrees that Optucorp will no longer have any obligation to honor the Optucorp Vacation Certificate.

7. Agreed Rules of Use for Optucorp Vacation Certificate. The Customer agrees to the following rules relating to the use of the Optucorp Vacation Certificate:

A. The Customer is entitled to select one of the published Itineraries for the Optucorp Cruise Travel according to the number of days specified in this agreement. Although Optucorp will use its best efforts to accommodate the Customer's preferences for the selected Itinerary and cabin, Optucorp shall have the ultimate decision authority on the actual Participating Cruise that will be selected for the Customer based upon several factors, including cabin occupancy and availability. In the event the Selected Itinerary or cabin preferred by the Customer is not available, Optucorp shall have the right to offer another Itinerary or cabin.

B.

Optucorp endeavors to offer to its customers a stay in ‘’Standard’’ Cruise Cabins at Carnival Cruises set forth in its website (www.optucorp.com).

C. Generally, the check-in and check-out time for the Participating Cruise will be specified once the customer receives his/her travel confirmation.

D. The cabin reserved shall be a standard Cruise cabin. The size or amount of beds may vary from one Cruise to another. The Customer acknowledges and agrees that in the event the he/she desire an upgrade to a larger or better Cruise cabin, additional charges may be charged to the Customer by the selected Participating Cruise.

E. For Participating Cruises, the Customer acknowledges and agrees that any Standard Cabin is an Interior cabin. In addition, in the event the Customer desires to stay at an Exterior cabin, the Customer acknowledges and agrees such cabins are subject to availability, and that the Participating Cruise may charge additional charges or surcharges for Exterior Cabins.

F. The Customer acknowledges and agrees that the cabin rates for the Participating Cruises have been negotiated in advance. Notwithstanding the foregoing, there are instances when cruises offer last minute special rates to fill the remaining vacancies in the cruise. The Customer further acknowledges and agrees that Optucorp is not responsible for any fluctuations in cabin rates at Participating Cruises which result in cabin rates below the Price of the Optucorp Vacation Certificate, and that because such occurrences are beyond the control of Optucorp, that the Customer may not assert any claim against Optucorp arising from such situations.

G. The Customer shall schedule his/her Reservation at least between eight and six (8 & 6) months in advance of the Travel Date.

H. To use his/her Optucorp Vacation Certificate, the Customer shall submit the Optucorp Reservation Form by e-mail to: reservationsusa@optucorp.com. The Customer will receive a written confirmation from Optucorp within 48 hours once he/she has fulfilled the reservation process. Unless the Customer fully complies with foregoing, Optucorp shall have no obligation to schedule the Reservation.

I. Payment of the Price entitles the Customer to use the Optucorp Vacation Certificate and enjoy its benefits throughout the published itineraries; however, the Customer Acknowledges and agrees that reservations will be subject to availability at the Participant Cruise.

J. In case the Customer has received the confirmation of his/her reservation and Carnival cancels the selected itinerary, Optucorp and Carnival agrees the customer will have the option to receive either a refund or a future cruise credit pursuant to the Cruise Cancelation and Itinerary Change Policy. In the event Optucorp fails to provide any of the Published Itineraries during the Effective Date, Optucorp will provide new itinerary options for the Customer. All approved refunds shall be paid to the Customer through the credit or debit card used by the Customer. All approved refunds shall be made within Thirty (30) Days of Optucorp’s receipt of a Customer’s request for a refund.

K. In the event the Customer commences the process to schedule a Reservation in less than six (6) Months in advance of the Travel Date, Optucorp will not have any obligation to grant the Customer’s travel request.

L. All Reservations are subject to availability of cabins at the Participating Cruise at the Selected Itinerary on the dates indicated by Carnival.

M. If a specific Itinerary preferred by the Customer does not have cabins available, and if a different Itinerary has cabins available, Optucorp may schedule the Reservation on a different date.

N. Subject to Section 7(P) below, the Customer must complete his/her travel at the Participating Cruise, within Twelve (12) Months of the Effective Date.

O.

The Customer may cancel this Optucorp Vacation Certificate for any personal reason. For any cancelation requested after Thirty (30) days from the date of the purchase, Optucorp will only refund Thirty Per Cent (30%) of the amount actually paid to Optucorp. Refunds will not apply after the effective date.

P. Agreed Extensions of the Effective Date.

i.) At the sole discretion of the Optucorp, and for good cause shown by the Customer, Optucorp may extend the expiration date of the Optucorp Vacation Certificate for a period of time up to Six (6) Months from the original expiration date of the Optucorp Vacation Certificate. The period of time from the original expiration date of the Optucorp Vacation Certificate, and the new expiration date after the agreed extension of time, shall be referred to herein as the "Agreed Extension Period".

ii.) In the event Optucorp grants an extension of the expiration date of an Optucorp Vacation Certificate at the request of the Customer, the Customer further acknowledges and agrees that:

a.) Any Reservation made during the Agreed Extension Period may only be used for the any available itinerary during the Agreed Extension Period, and shall be subject to additional surcharges according to adjusted rates at the time of travel; and,

b.) Notwithstanding any language to the contrary contained herein, the Customer shall not be entitled to any refund of any of the amounts actually paid to Optucorp in the event the Customer cancels the Agreement for any reason during the Agreed Extension Period.

Q. The Customer agrees to observe and comply with all of the terms of this Agreement, including but not limited to the Agreed Rules of Use for Optucorp Vacation Certificate, the Optucorp Terms & Conditions and the Carnival Terms & Conditions.

R. By signing this Agreement, the Customer represents, acknowledges and agrees that he/she has read this Agreement, the Optucorp Terms & Conditions, that he/she has fully understood the Agreement, the Optucorp Terms & Conditions and has agreed to be bound by each of the terms and conditions of this Agreement and the Optucorp Terms & Conditions.

For any and all questions relating to the Rules relating to the use of the Optucorp Vacation Certificate, the Customer should consult with an Optucorp representative by phone, and/or visit the Optucorp website (www.optucorp.com) to obtain listed phone numbers or online chat to contact a representative of Optucorp.

8. Definitions.

As used in this Agreement, the following definitions shall have the following meanings (such definitions to be equally applicable to both singular and plural forms of the terms defined):

"Agreed Extension Period" when used in this Agreement shall have the meaning set forth in Section 7(P)(i).

"Credit Card" when used in this Agreement means the Customer's designated credit card or debit card issued by a national or state licensed financial institution.

"Customer" when used in this Agreement means the Customer identified in the preamble of this Agreement.

"Destination Expenses" when used in this Agreement means any and all expenses of admission tickets, fees or costs associated with visiting or attending any tourist parks, amusement centers, museums, concerts, golf or racquet sporting venues, tours at the Itinerary Destination.

"Effective Date" when used in this Agreement means the date of the Customer's first installment payment of the Price paid to Optucorp.

"Ground Transportation Expenses" when used in this Agreement means any and all expenses of rental cars, parking expenses, taxis, Uber (and similar services), limousine services, shuttle buses, subways or other mass transit and any other ground transportation services, bus station, seaport or train station to the Participating Cruise, and/or to and from any tourist destinations at or near the Itinerary Destinations.

"Optucorp" when used in this Agreement means Optucorp USA LLC as more fully identified in the preamble of this Agreement.

"Optucorp Terms & Conditions and Carnival Terms & Conditions" when used in this Agreement shall have the meaning set forth in Section 2 of this Agreement.

"Optucorp Vacation Certificate" when used in this Agreement means the travel certificate sold to the Customer by Optucorp for the Price, under which the Customer shall be entitled to an Optucorp Cruise Travel.

"Optucorp Cruise Travel" when used in this Agreement shall have the meaning set forth in Section 1 of this Agreement.

"Participating Cruise" when used in this Agreement means, Carnival Cruise that has agreed to participate in honoring Optucorp Vacation Certificates.

"Price" when used in this Agreement shall have the meaning set forth in Section 1 of this Agreement. The Price represents the total consideration paid by the Customer for the Optucorp Vacation Certificate, including applicable sales taxes.

"Reservation" when used in this Agreement means an approved and confirmed reservation for an Optucorp Cruise Travel at a Participating Cruise.

"Selected Itinerary" when used in this Agreement means one of the available dates and destinations selected by the Customer. For a complete up to date listing of all of the available Itineraries, please visit our website at: www.optucorp.com.

"Travel Date" when used in this Agreement means the date of check-in or the first day of the reserved stay at the Participating Cruise.

"Travel Expenses" when used in this Agreement means any and all expenses of airplane tickets, national or local bus tickets, train tickets, parking expenses, and/or any other transportation expenses to and from the Customer's departure location outside the Cruise and the selected.

9. Miscellaneous.

A. Entire Agreement. This Agreement (including the Optucorp Terms & Conditions and Carnival Terms & Conditions that are specifically incorporated herein by reference) constitutes the entire agreement and understanding of the Parties.

B. Headings. The headings of the sections and paragraphs of this Agreement are inserted for convenience only and shall not be deemed to constitute part of this Agreement or to affect the construction hereof.

C. Amendment. No amendment, modification, waiver, change or addition hereto shall be effective or binding on any party hereto unless the same is in writing and signed by Optucorp and the Customer.

D. Severability. The invalidity or unenforceability of any provision of this Agreement shall not affect the validity or enforceability of its other provisions.

E. No Third Party Beneficiaries. This Agreement is solely for the benefit of the Customer, and this Agreement shall not otherwise be deemed to confer upon or give to any other third-person any right, claim, cause of action, or other interest herein.

F.

Notices. Any notice, request, instruction or other document to be given hereunder by any party hereto to any other party hereto shall be in writing and delivered personally, by e-Mail (with proof of receipt), by facsimile transmission (with proof of receipt), or sent by an overnight courier delivery service (ie: FedEx, UPS or DHL) postage or fees prepaid to the address set forth in the preamble of this Agreement.

G. Governing Law; Construction. This Agreement shall be governed and construed in accordance with the laws of the State of Florida, without giving effect to principles of conflicts of law. H. Dispute Resolution; Jurisdiction; Venue; Attorneys Fees and Costs.

i.) Venue and Jurisdiction. This Agreement shall be deemed to have been executed and delivered in Miami-Dade County, Florida. In the event of any claim arising out of or relating to this Agreement, the Parties hereby consent to venue and the personal jurisdiction of the courts in Miami-Dade County, Florida.

ii.) Litigation. Each party to this Agreement agrees that in the event of any claim arising out of or relating to this Agreement, which is not resolved through voluntary mediation or the agreement of the Parties, such dispute shall be adjudicated through litigation in the applicable court of the Eleventh Judicial Circuit, in and for Miami-Dade County, Florida.

iii.) Waiver of Right to Trial by Jury. In the event of any litigation arising from or related to any claim arising out of or relating to this Agreement, the Parties expressly waive the right to trial by jury.

iv.) Attorneys Fees and Costs. In the event of any litigation arising out of or relating to this Agreement, the prevailing party shall be entitled to recover from the non-prevailing party any and all costs (including, court costs, court reporter fees, expert witness fees, and other related litigation or arbitration costs) and any and all attorneys' fees incurred in the litigation.

K. Execution in Counterparts. This Agreement may be executed in counterparts by the Parties, with the same effect as if all Parties had signed the same document. All counterparts shall be construed as and shall constitute one and the same document.

THIS AGREEMENT IS FOR THE PURCHASE OF A VACATION CERTIFICATE AND PLACES ALL ASSIGNEES ON NOTICE OF THE CONSUMER'S RIGHT TO CANCEL UNDER SECTION 559.933, FLORIDA STATUTES.

YOU MAY CANCEL THIS CONTRACT WITHOUT ANY PENALTY OR OBLIGATION WITHIN 30 DAYS FROM THE DATE OF PURCHASE OR RECEIPT OF THE VACATION CERTIFICATE, WHICHEVER OCCURS LATER. NO PURCHASER SHOULD RELY UPON REPRESENTATIONS OTHER THAN THOSE INCLUDED IN THIS CONTRACT. YOU MAY ALSO CANCEL THIS CONTRACT IF ACCOMMODATIONS OR FACILITIES ARE NOT AVAILABLE PURSUANT TO A REQUEST FOR USE AS PROVIDED IN THE CONTRACT. IF YOU DECIDE TO CANCEL, YOU MUST NOTIFY THE SELLER IN WRITING OF YOUR INTENT TO CANCEL BY RETURNING YOUR CERTIFICATE AND SENDING NOTICE TO: OPTUCORP USA, LLC. AT 13300 SW 128TH ST, MIAMI, FL 33186.

NO PURCHASER SHOULD RELY UPON REPRESENTATIONS OTHER THAN THOSE INCLUDED IN THIS CONTRACT.

IN WITNESS WHEREOF, the Parties have signed this Agreement as of _____, _____, 20____.

OPTUCORP USA LLC

_____

By: _____

Title: _____

CUSTOMER

_____

Name: _____

TERMS AND CONDITIONS

1. This Vacation Certificate is valid for Three ([dias_crucero]) days based on double occupancy for standard cabin accommodations for were Carnival Cruises itineraies apply. Certain restrictions apply.

2. All reservations are subject to space availability.

3. This Vacation Certificate is valid for two adults, 21 years of age or older with a major credit card. Meals and Drinks are included. There is additional charge per travel for extra guests.

4. No pets allowed.

5. Additional cabins may be requested at discounted rates, subject to availability.

6. This Vacation Certificate cannot be used in conjunction with any other Vacation Certificate unless authorized in writing by Optucorp.

7. This Vacation Certificate is eligible including adults of 21 years of age or older, but not limited to sex, race, marital status, group association, residency or geographic limitations.

8. Once you have e-mailed your reservation form and the reservation is confirmed in writing by Optucorp, you may proceed with your transportation plans to the Cruise port. We recommend not to book your means of transportation until your reservation has been validated for the itinerary of your choice and you have received a confirmation code in writing via e-mail.

9. Whenever possible we try our best to accommodate your first requested reservation. When requesting a reservation by phone, you must receive a receipt confirmation by e-mail within 48 hrs after receiving your request. Such request must comply with the established reservation process in order to recieve the confirmation and validate the reservation.

10. Optucorp reserves the right to add/remove itineraries without prior notice.

11. This Vacation Certificate is valid for accomodations, taxes, gratuities and meals inside the Cruise. You will be responsible for taxes, gratuities, transportation outside the Cruise, service charges and incidental expenses.

12. This Vacation Certificate cannot be exchanged for cash, any monetary consideration, resold nor be reproduced. There are no refunds of unused portions of this Vacation Certificate and it expires 12 (twelve) months from the first payment due date. Therefore, all travel must be completed before expiration date.

13. The Vacation Certificate is fully transferable at all times, should you use it as a gift, subject to all Terms and Conditions. The Customer shall request in writing to **reservationsusa@optucorp.com** to transfer the Vacation Certificate to any person, with the only restriction of that person being 21 years of age or older and to be subject to the terms and conditions of this contract.

14. While on vacation you may be offered exciting vacation opportunities by one of our hosting Cruises in the hopes that you will vacation with them in the future. Optucorp is not affiliated with such offers, and bears no responsibility or liability for any claims or representations made in any such offers, nor is attending any presentation a requirement of the Vacation Certificate.

15. Your check-in confirmation code and valid passport shall be required on check-in, and cruises will require a valid major credit card to be presented to cover incidental charges. This is a standard procedure and no charge should be applied to your credit card unless otherwise specified by the cruise at the moment of your check-out.

19. Optucorp is not responsable for any fluctuations in Cabin rates at any Participant Cruise.

20. All reservations are subject to availability of Cruise cabins in every itinerary.

21. Optucorp is not to be held responsible for any inconvenience, delay, disappointment, frustration, accident, injury, loss of employment, or damage to persons, any whether physical or emotional distress, or any act of God, terrorism, or any liability whatsoever arising from or in conjunction with the services provided, or any other circumstances beyond its control which may cause the travel arrangements to become unavailable.

22. This Vacation Certificate is void where prohibited by law. All federal, state and local laws apply. No other representations, oral or otherwise, are valid in conjunction with this Vacation Certificate.

23. You may cancel a confirmed reservation up to five (5) months before the selected date of travel and reschedule following the same designated reservation process. If you cancel a confirmed reservation in less than five (5) months before of the selected date of travel, you may be subject to Carnival Cruises cancellation policies of which can vary pursuant to the Cruise Cancelation and Itinerary Change Policy

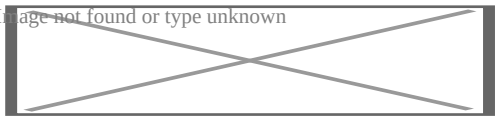
24. Under no circumstance the use of discounts or complimentary coupons or tickets will apply.

25. Any violation of these Terms and Conditions will result in the Vacation Certificate becoming null and void. This contract is for the purchase of a vacation certificate and puts all assignees on notice of the consumer's right to cancel under Section 559.933, Florida Statutes.

OPTUCORP USA, LLC is registered with the State of Florida as a Seller of Travel, Registration No. ST39383

_____ _____

OPTUCORP THE CUSTOMER



Optucorp Reservation Form

Customer

Name: _____

Date of Birth: _____

Male/Female: _____

Address: _____

City: _____ *State:* _____ *Zip:* _____

E-Mail: _____

Home Phone: _____

Cell Phone: _____

Work Phone: _____

Reservation Information

Dates: _____

Cruise name _____

_____

_____

Number of persons _____

Number of Children: _____

1st Child's Date Of Birth _____

2nd Child's Date Of Birth _____

*Total Cost Of The Vacation Certificate $*_____

By signing this Reservation Confirmation, the Customer represents and confirms that he/she agrees to the Selected Itinerary.

Customer's signature: _____ Dated:

_____

Please e-mail the completed Reservation Form to: reservationsusa@optucorp.com

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